

FREEMAN, SR., et al. v SMITH

24CV47282

DEFENDANT'S DEMURRER AND MOTION TO STRIKE

Plaintiffs Michael Steven Freeman, Sr., and Janice Marie Freeman as Trustees of the Michael Steven Freeman Sr. and Janice Marie Freeman revocable Trust, and Michael Steven Freeman, Jr. filed their Complaint to quiet title against Defendant Lyle Smith. Now before the Court are Defendant's Demurrer and Motion to Strike.

The motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Furthermore, the demurrer fails to comply with California Rules of Court, rule 3.3120(a) and the motion to strike fails to comply with California Rules of Court, rule 3.1322(a).

Based on the foregoing, the motion is **DENIED**, without prejudice to refile, if otherwise allowed by law.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

THE TOYON PROJECT, LLC v FREITAS, JR., et al

24CV47564

PLAINTIFF'S APPLICATION FOR WRIT OF ATTACHMENT

On August 20, 2024, The Toyon Project, LLC ("Plaintiff") filed a verified complaint for breach of contract and declaratory relief against Sunset Foundry, Inc. ("Sunset"), David M. Freitas, Jr. ("David"²) and Michael K. Freitas ("Michael") (collectively "Defendants"). Plaintiff filed an ex parte application for a temporary protective order and an order for writ of attachment; on September 4, 2024, the Court issued a temporary protective order prohibiting Defendants from selling or disposing of any assets until the instant hearing on the writ of attachment.

I. Background

Plaintiff is the owner of real property commonly known as 3474 Toyon Circle, Valley Springs ("Property"). In August of 2006, Plaintiff and Defendants entered into a commercial lease agreement to use the Property for the purpose of operating a foundry ("Lease"). David also gave a personal guarantee, regarding, inter alia, the payment of all rents and other sums payable under Lease.

Between September 2006 and November 30, 2023, either by delinquent payment or repeatedly missing payments altogether, Defendants failed to pay rent when due under Lease. On February 28, 2024, Plaintiff and Defendants entered into an additional written contract ("Forbearance Agreement"). Pursuant to the Forbearance Agreement, Defendants agreed that they owed the principle sum of unpaid rent in the amount of \$240,975.00, plus late fees, under the Lease. Defendants would arrange for payments of all past due sums on or before April 30, 2024, and Plaintiff would be granted a security interest in all of the equipment owned by Sunset ("Equipment").

Plaintiff alleges that Sunset has relocated Equipment to California Electric Steel in Angels Camp, California, and are selling same and keeping the proceeds from Plaintiff. (Application for Writ of Attachment, Attachment 7 & 13(b), hereinafter "Smith Decl", ¶ 8.)

II. Legal Standard

Code of Civil Procedure Section 483.010(a) provides:

² Due to the common last name of the Defendants, the Court uses their first names. No disrespect is intended.